

In opposition, Defendants provide evidence that they obtained the second certificate of non-appearance fee in October 2024 and cancellation fees, after obtaining a court order compelling Thomas-Marsh to appear for her deposition and after obtaining confirmation from Thomas-Marsh that she would attend her October 2024 deposition. (Declaration of Nathaniel B. Rosilez, ¶¶ 6-7 and 10-16.) Based on this, Defendants did what Plaintiff contends they should have done, undermining Plaintiff's argument that the fees are unreasonable. In reply, Plaintiff continues to argue that taking the certificate of non-appearance in October was not necessary. This appears to be based on Thomas-Marsh's prior untrustworthy conduct.

It also appears that obtaining the video cancellation fees were reasonable. Based on the evidence in opposition, Thomas-Marsh confirmed she would be attending her deposition 9 days before the deposition. This was after Defendants obtained a court order compelling said deposition. Defendants' conduct in proceeding with a video tapped deposition appears appropriate based on these facts. As such, the costs for the cancellation appear reasonable. The motion is denied as to these costs.

Service of Process Fees: Plaintiff asserts that \$391.80 in fees for attempting to serve Jeffrey Boyd should be taxed because Boyd was successful in serving him three days later, for which Defendant seeks \$239.35 in fees for said service. Plaintiff argues the fees for the unsuccessful service are not proper. Under CCP § 1033.5(a)(4), fees for the service of process by a registered process server is allowed. These fees were incurred by a registered process server. (Declaration of Nathaniel B. Rosilez, ¶¶ 8 and 9.) Plaintiff does not argue that this individual's testimony was not necessary. There is no evidence that indicates that it was unreasonable that service took two attempts. The motion is denied as to this request.

Plaintiff also seeks to tax \$295 in private investigator fees to locate Thomas-Marsh for service of her deposition subpoena. This argument has merit. Investigation fees, except when authorized by law, are not allowed. (CCP § 1033.5(b)(2).) No statute is identified by Defendants. The motion is granted as to this request.

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CASE #	CASE NAME	HEARING NAME
CVRI2304620	BALOGH VS CROWN SURGERY MEDICAL GROUP, INC.	MOTION TO ENFORCE SETTLEMENT & ENTER JUDGMENT, SUPPORTING DECLARATION, PROPOSED ORDER

Tentative Ruling: Grant. Proper order needed for signature. Costs to be determined by declaration.